

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index #:515244/2018

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PATRICIA WATSON, DEMAND LODGE and
LITTLE OCHIE RESTAURANT AND LOUNGE INC.

Plaintiffs,

-against-

AMENDED COMPLAINT

THE CITY OF NEW YORK, SGT. ALAN CHAU
SHIELD #24265, POLICE OFFICER
JOSEPH L. VITI SHIELD # 9113 AND OTHER
UNIDENTIFIED OFFICERS "JOHN DOES" AND
"JANE DOES", APPROXIMATELY "1-10" NAMES
FICTITIOUS, TRUE NAMES UNKNOWN INTENDED
TO DESIGNATE POLICE OFFICERS OF THE 67TH
PRECINCT AT THE TIMES AND PLACES ALLEGED

Defendants.

-----X
S I R S:

Plaintiffs, PATRICIA WATSON, DEMAND LODGE and
LITTLE OCHIE RESTAURANT AND LOUNGE INC. by their attorney,
MICHAEL B. PALILLO, P.C., complaining of the Defendants, allege
upon information and belief as follows:

1. At all dates and times hereinafter mentioned the
Plaintiff PATRICIA WATSON was and still is a resident of the
County of Kings, State of New York.

2. At all dates and times hereinafter mentioned the
Plaintiff DEMAND LODGE was and still is a resident of the
County of Kings State of New York.

3. At all dates and times hereinafter mentioned the Plaintiff LITTLE OCHIE RESTAURANT & LOUNGE was and still is a domestic corporation authorized to transact business in the State of New York, State of New York.

4. That this is an action for money damages to redress deprivation by Defendants of the rights secured to the Plaintiff PATRICIA WATSON under the Constitution and Laws of the United States of America and the City and State of New York.

5. That this is an action for money damages to redress deprivation by Defendants of the rights secured to the Plaintiff DEMAND LODGE under the Constitution and Laws of the United States of America and the City and State of New York.

6. That this is an action for money damages to redress deprivation by Defendants of the rights secured to the Plaintiff LITTLE OCHIE RESTAURANT & LOUNGE under the Constitution and Laws of the United States of America and the City and State of New York.

7. That at all times hereinafter mentioned, the Defendant, THE CITY OF NEW YORK, [hereinafter "CITY"], was and still is a Municipal corporation duly organized and existing under and by virtue of the Laws of the State of New York.

8. That at all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT, was and still is a Department

and/or Agency of the CITY OF NEW YORK and operates under its supervision, management, and control and which is responsible for the appointment, training, supervision, promotion and discipline of police officers, detectives, and supervisory police officers and detectives, including the individually named Defendants herein. Defendant, "CITY" as an employer of the individual Defendant officers is responsible for their wrongdoing under the doctrine of *respondeat superior*.

9. Upon information and belief that at all dates and times hereinafter mentioned, SGT. ALAN CHAU SHIELD #24265, P.O. JOSEPH L. VITI SHIELD #9113 and OTHER UNIDENTIFIED OFFICERS "JOHN DOES" and "JANE DOES" CONSISTING OF APPROXIMATELY "1-10" were designated Police Officers assigned to the 67th Precinct and were agents, servants, and/or employees of the New York City Police Department, a municipal agency for THE CITY OF NEW YORK and acted within the scope of their employment as such.

10. The actions of the Defendants SGT. ALAN CHAU, P.O. JOSEPH L. VITI and other unidentified officers "JOHN DOES" AND "JANE DOES" "1-10" occurred while they were in the course of and within the scope of their duty and function as New York City Police officers as agents servants and/or employees of the CITY OF NEW YORK.

11. The "CITY" as a municipal entity is authorized under the laws of the State of New York to maintain a police department known as the New York City Police Department which acts as its agent in the area of law enforcement and for which it is ultimately responsible.

12. The "CITY" assumes the risk incidental to the maintenance of its police force and employment of police officers.

13. Upon information and belief, the law enforcement activity of the "CITY" and New York City Police Department are funded in part with funds from the Federal Government.

14. That a Notice of Claim was duly presented to the CITY OF NEW YORK at the Office of the Comptroller of the City of New York on the 17TH day of November 2017 on behalf of PATRICIA WATSON which was within ninety (90) days of the cause of action accrued herein.

15. That a Notice of Claim was duly presented to the CITY OF NEW YORK at the Office of the Comptroller of the City of New York on the 17TH day of November 2017 on behalf of DEMAND LODGE and LITTLE OCHIE RESTAURANT AND LOUNGE INC. which was within ninety (90) days of the cause of action accrued herein.

16. That the "CITY" has demanded a hearing, pursuant to §50-H of the General Municipal Law, and the hearing scheduled

for PATRICIA WATSON, DEMAND LODGE and LITTLE OCHIE RESTAURANT AND LOUNGE INC. was held on June 4, 2018.

17. Said claims have been presented for adjustment and payment and no adjustment or payment has been had.

18. This action has been brought within one year and ninety (90) days of the happening of the event complained of.

19. That at all times herein mentioned, the Defendants were acting under color of law, that is, under color of the Constitution of the United States, Federal Law, statutes, laws, rules, regulations, customs, and usages of the City and State of New York.

20. The within claim on behalf of PATRICIA WATSON against the Defendants is for unlawful search and seizure, unlawful arrest, false arrest, false imprisonment, unlawful pat down, unlawful detainment, assault, battery, negligence, negligent hiring, training, accusing, falsely charging with crimes, failing to intercede/stop an unlawful arrest and targeting because PATRICIA WATSON, an individual of Caribbean descent, is employed by a Caribbean owned business, in a predominantly Caribbean Community, in violation of laws which include and are not limited to:

28 U.S.C. §§ 1331, 1343 (3) and 1367 (a)

42 U.S.C. 1983 (Section 1983)

Fourth and Fourteenth Amendments to the
United States Constitution;
The laws of the State of New York;
Common law torts of false imprisonment/arrest;
Non consensual detention;
Refusal to allow the Plaintiff to leave an area
and physically preventing him from leaving an
area for a long period of time without his
consent and against their will;
Negligence;
Assault and Battery;
In placing the Plaintiff in imminent and
offensive bodily contact and/or wrongfully
subjecting him to offensive physical contact
without his consent;
In subjecting the Plaintiffs to a body search;
In negligently subjecting the Plaintiff to
emotional distress;
In intentionally subjecting the Plaintiff to
emotional distress;
Malicious prosecution;

21. The within claims on behalf of DEMAND LODGE and
LITTLE OCHIE RESTAURANT AND LOUNGE INC. are for intentional

tort, loss of business income, property damage, defamation of character, slander, libel, prima facia tort, violation of the civil rights, negligence, and tortuous interference with contractual relationships.

ON BEHALF OF PATRICIA WATSON

AS AND FOR A FIRST CAUSE OF ACTION

22. Plaintiffs repeat, reiterate and reallege each and every allegation as if more fully set forth herein at length.

23. That at all dates and times hereinafter mentioned the Plaintiff DEMAND LODGE, was the owner of a restaurant known as LITTLE OCHIE RESTAURANT AND LOUNGE INC.

24. That at all dates and times hereinafter mentioned the Plaintiff LITTLE OCHIE RESTAURANT AND LOUNGE INC. maintained a place of business located at 3605 Church Avenue Brooklyn, New York.

25. That LITTLE OCHIE RESTAURANT AND LOUNGE INC. is located within one of the largest Caribbean-dense populations within the City of New York.

26. That at all dates and times hereinafter mentioned the business plan of the Plaintiff LITTLE OCHIE RESTAURANT AND LOUNGE INC. was to not only to serve diverse Jamaican-Caribbean food to a primarily Caribbean community but to encourage others of non Caribbean descent to enjoy Jamaican-Caribbean food.

27. That the Plaintiff PATRICIA WATSON is the mother of Plaintiff DEMAND LODGE.

28. That Plaintiff PATRICIA WATSON was well known in the local Caribbean Community as she operated another restaurant called D & P Restaurant located at 3405 Church Avenue Bklyn N.Y. for in excess of twenty years.

29. That at all dates and times hereinafter mentioned the Plaintiff PATRICIA WATSON assisted DEMAND LODGE in opening and establishing a Jamaican-Caribbean community restaurant known as LITTLE OCHIE RESTAURANT AND LOUNGE INC.

30. That at all dates and times herein mentioned the Plaintiff LITTLE OCHIE RESTAURANT AND LOUNGE INC. maintained a valid New York State Liquor License and a valid New York City Place of Assembly Certificate of Operation.

31. That September 29, 2017 was the grand opening of the restaurant known as LITTLE OCHIE RESTAURANT AND LOUNGE INC.

32. That on September 29, 2017 and into September 30, 2017 there were approximately thirty (35) to forty (40) patrons dining.

33. That on September 30, 2017, at approximately 12:30 A.M. without warning, agents, servants and/or employees of the 67th Pct. including but not limited to SGT. ALAN CHAU (sp) and P.O. Joseph Viti shield number 91143, and approximately ten (10)

police officers entered into LITTLE OCHIE RESTAURANT AND LOUNGE INC. where approximately 30-45 patrons were dining and ordered that the restaurant be closed.

34. The police officers approached PATRICIA WATSON, who was not an owner of Little Ochie Restaurant & Lounge Inc. nor is she listed on the Little Ochie Restaurant & Lounge Inc. liquor license as an owner.

35. The police officers questioned PATRICIA WATSON, then telling her that there was no valid NYS liquor license on premises.

36. In spite of the liquor license being in plain view, publicly displayed, shown and identified to the Defendants, the Defendants refused to view it stating that they had no liquor license on record.

37. In spite of being so advised, the Defendants confined PATRICIA WATSON to a seat in the restaurant for over five (5) minutes, detained against her will in the restaurant for approximately one (1) hour, arrested PATRICIA WATSON inside the restaurant, paraded her in handcuffs, in front of patrons, her family including her grandson and other employees in the restaurant in a neighborhood where she was known, had her body searched on more than one occasion, paraded her outside in public in handcuffs; placed her into a police vehicle in

handcuffs driven to the 67th police precinct in handcuffs, held in the police station/custody in handcuffs, interviewed, fingerprinted, photographed, falsely arrested, unlawfully imprisoned against her will, assaulted, held in the precinct from approximately 1:30 A.M. to 11:30 A.M. taken to Central Booking where she was again interviewed and held against her will, taken to the Criminal Court Kings County where she was placed in a holding cell, was required to appear in Criminal Court on September 30, 2017 before Judge Perco, was arraigned and charged her with the following crimes:

PL 240.45 (2) CRIMINAL NUISANCE 2
AC 24-220(A) DEGREE SOUND REPRODUCTION DEVICES

38. A copy of the Criminal Court Complaint is annexed hereto as Exhibit "A" and reflects that P.O, Viti alleges that while walking outside the restaurant he heard loud music and upon entering the premises, sensed a strong odor of marijuana emanating from the back of the restaurant and into a patio area where he found what appeared to be a quantity of green leaves and cigar wrappers on table which he identified as marijuana.

39. Upon information and belief, the Defendants including but not limited to LT CHOU instructed all of the patrons in the restaurant to immediately leave as the restaurant was now closed.

40. PATRICIA WATSON appeared in the Criminal Court Kings County on September 30, 2017 when the case was disposed of with an ACD-CPL 170.55.

41. That the actions of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants, and/or employees, including but not limited to SGT. ALAN CHAU, P.O. JOSEPH L. VITI were a continuous, deliberate and concerted course of conduct sponsored and endorsed by THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, it's agents, servants and/or employees, to prevent Caribbean owned businesses from engaging in Caribbean styled music, selling food and providing entertainment events which actions included but were not limited to conduct intended to curtail, limit and harass Caribbean owned businesses.

42. THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants, and/or employees, including but not limited to SGT. ALAN CHAU, P.O. JOSEPH L. VITI were negligent, careless, recklessness in the performance of their official duties, and exhibited a willful, wanton disregard for the Claimant's Civil Rights as guaranteed by the Constitution of the United States, the Constitution of the State of New York as well as Federal, State and Local laws.

43. THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, were negligent, careless and reckless in failing to hire, instruct, train, re-train, supervise, monitor, counsel its employees and failed to properly hire, train, re-train, supervise, monitor, counsel its agents, servants and/or employees.

Furthermore none of the agents, servants and/or employees who were present at the time of PATRICIA WATSON'S arrest attempted to intervene and prevent the above referenced unlawful conduct.

44. That the actions of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, including but not limited SGT. ALAN CHAU(sp) were egregious, intentional act, in violation of City, State and Federal Civil Rights, and beyond the scope of human decency and shocking.

45. That the injuries PATRICIA WATSON was caused to suffer serious emotional injuries, included but not limited to being assaulted, subject to battery, having to endure scorn and ridicule by being paraded in public in handcuffs, in front of others in a neighborhood where she was known, having her body searched on more than one occasion, placed in to a police vehicle in handcuffs where she remained for over four (4) hours, driven to the 67th police precinct in handcuffs, held in the

police station/custody in handcuffs, interviewed, fingerprinted, photographed, falsely arrested, unlawfully imprisoned against her will, subject to an unauthorized body search, taken to Central Booking where she was held, taken to the Criminal Court Kings County where he was placed in a holding cell, was required to appear in Criminal Court before a Judge, was arraigned and the charges against her were dismissed pursuant to an ACD. This caused PATRICIA WATSON to endure physical pain, placed her health under strain, suffered humiliation, emotional distress and serious injuries the full extent of which are not fully known due to the actions of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

46. That due to the actions of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT their agents, servants, and/or employees, including but not limited to SGT. ALAN CHAU and P.O, JOSEPH L. VITI of the 67th Pct. the Claimant suffered serious physical injuries, stress upon her physical system, psychological emotional injury and anxiety, was admitted to the Kings County Hospital on October 11, 2017 and subsequently discharged on October 16, 2017 for injuries for which THE CITY OF NEW YORK, and THE NEW YORK CITY POLICE DEPARTMENT the full extent of which is not known at this time, for which she may

require to and will be required to seek health care in the future.

47. At no time did PATRICIA WATSON resist or attempt to resist the officers' placing of handcuffs on her, the officers' placing her into the police vehicle or the officers' transporting her to the precinct, placing her into custody and/or arresting her.

48. That PATRICIA WATSON was aware of her confinement, did not consent to her confinement, the placing of hands onto her person, her being searched and handcuffed and her arrest was not otherwise privileged.

49. Upon information and belief, no facts existed which would give rise to an inference that PATRICIA WATSON committed the crimes of which he was charged.

50. That as a result of the foregoing, the Plaintiff PATRICIA WATSON has been damaged in a sum which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION

51. Plaintiffs repeat, reiterate and re-alleges each and every allegation previously set forth as if more fully set forth herein at length.

52. That the actions of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants, and/or

employees, including but not limited to SGT. ALAN CHAU (sp) and P.O. VITI were in continuance of a deliberate and concerted course of conduct sponsored and endorsed by THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, it's agents, servants and/or employees, to prevent, curtail, limit, harass Caribbean owned businesses from engaging in Caribbean styled music and entertainment events.

53. That as a result of the foregoing, the Plaintiff PATRICIA WATSON has been damaged in a sum which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION

54. Plaintiffs repeat, reiterate and re-allege each and every allegation previously set forth as if more fully set forth herein at length.

55. THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants, and/or employees, including but not limited to SGT. ALAN CHAU and PO VITI were negligent, careless, recklessness in the performance of their official duties, and exhibited a willful, wanton disregard for PATRICIA WATSON'S Civil Rights as guaranteed by the Constitution of the United States, the Constitution of the State of New York as well as Federal, State and Local laws.

56. That as a result of the foregoing, the Plaintiff PATRICIA WATSON has been damaged in a sum which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION

57. Plaintiffs repeat, reiterate and re-allege each and every allegation previously set forth as if more fully set forth herein at length.

58. THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees were negligent, careless and reckless in failing to hire, instruct, train, re-train, supervise, monitor, counsel its employees and failed to properly hire, train, re-train, supervise, monitor, counsel its agents, servants and/or employees.

59. That none of the Defendants took any action to intercede and prevent the unlawful arrest of the Plaintiff PATRICIA WATSON.

60. That the Defendants knew or should have known that their actions as described above were in violation of law.

61. That as a result of the foregoing, the Plaintiff PATRICIA WATSON has been damaged in a sum which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION

62. Plaintiffs repeat, reiterate and re-allege each and every allegation previously set forth as if more fully set forth herein at length.

63. THE CITY OF NEW YORK, its agents, servants and/or employees, have engaged in pervasive, unconstitutional practices which are a direct and proximate result of policies, practices, and/or customs devised implemented, enforced and sanctioned by the "CITY" with the knowledge that such policies, practices, and customs would lead to violations of the Fourth and Fourteenth Amendments.

64. The Fourth Amendment of the United States Constitution prohibits police officers from conducting stops without a reasonable, articulable suspicion of criminal conduct and searching, seizing, or arresting persons without probable cause.

65. These practices, policies, and customs include but are not limited to failing to properly screen, train, and supervise New York City Police Department officers, failing to adequately monitor and discipline New York City Police Department officers, and encouraging, sanctioning, and failing to rectify the New York City Police Department's custom and practices of unlawful stops searches, seizures and arrests.

66. That the injuries PATRICIA WATSON was caused to suffer were serious emotional injuries, included but not limited to having to endure scorn and ridicule by being paraded in public in handcuffs, in front of others in a neighborhood where she was known, having her body searched on more than one occasion, placed in to a police vehicle in handcuffs, driven to a police precinct in handcuffs, held in the police station/custody in handcuffs, interviewed, fingerprinted, photographed, falsely arrested, unlawfully imprisoned against her will, assaulted, taken to Central Booking where she was held, taken to the Criminal Court Kings County where she was placed in a holding cell, was required to appear in Criminal Court before a Judge, was arraigned, was maliciously prosecuted, which caused her to endure physical pain, placed her health under strain, suffered humiliation, emotional distress and serious injuries the full extent of which are not fully known due to the actions of the Defendants.

67. That as a result of the foregoing, the Plaintiff PATRICIA WATSON has been damaged in a sum which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION

68. Plaintiffs repeat, reiterate and re-allege each and every allegation previously set forth as if more fully set forth herein at length.

69. As a result of the Defendants acting knowingly, intentionally, and/or willfully and/or with willful, wanton, and reckless disregard of PATRICIA WATSON'S protected rights, Plaintiff PATRICIA WATSON seeks punitive damages.

AS AND FOR A SEVENTH CAUSE OF ACTION

70. Plaintiffs repeat, reiterate and re-allege each and every allegation previously set forth as if more fully set forth herein at length.

71. That the Defendants have committed the following wrongful acts against the Plaintiff PATRICIA WATSON which are tortuous under the Constitution and Laws of the State of New York:

Assault;

Battery;

Unlawful search and seizure;

False arrest;

False imprisonment;

Malicious prosecution;

Negligence.

72. As a result of the foregoing the Plaintiff has been damaged in a sum which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A EIGHTH CAUSE OF ACTION

73. Plaintiffs repeat, reiterate and re-allege each and every allegation previously set forth as if more fully set forth herein at length.

74. That due to the actions of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT their agents, servants, and/or employees, including but not limited to SGT. ALAN CHAU, P.O. VITI and "JOHN DOE/JANE DOE" upon information and belief, numbered "1-10" of the 67th Pct. the Claimant suffered serious physical injuries, stress upon her physical system, psychological emotional injury and anxiety, injuries for which THE CITY OF NEW YORK, and THE NEW YORK CITY POLICE DEPARTMENT the full extent of which is not known at this time, for which he may require to and will be required to seek health care in the future.

75. That the Plaintiff PATRICIA WATSON has been damaged in a sum which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A NINTH CAUSE OF ACTION

76. Plaintiffs repeat, reiterate and re-allege each and every allegation previously set forth as if more fully set forth herein at length.

77. That the Defendants have negligently caused emotional distress to the Plaintiff PATRICIA WATSON.

78. That the Plaintiff PATRICIA WATSON has been damaged in a sum which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A TENTH CAUSE OF ACTION

79. Plaintiffs repeat, reiterate and re-allege each and every allegation previously set forth as if more fully set forth herein at length.

80. That the Defendants have intentionally caused emotional distress to the Plaintiff PATRICIA WATSON.

81. That the Plaintiff PATRICIA WATSON has been damaged in a sum which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A ELEVENTH CAUSE OF ACTION

82. Plaintiffs repeat, reiterate and re-allege each and every allegation previously set forth as if more fully set forth herein at length.

83. That the Plaintiff PATRICIA WATSON was caused to spend diver sums of money for legal representation.

84. Plaintiff PATRICIA WATSON seeks reimbursement of all legal fees expended.

AS AND FOR A TWELFTH CAUSE OF ACTION

85. Plaintiffs repeat, reiterate and re-allege each and every allegation previously set forth as if more fully set forth herein at length.

86. That the Plaintiff PATRICIA WATSON is entitled to an award of attorneys fees.

**ON BEHALF OF DEMAND LODGE AND
LITTLE OCHIE RESTAURANT AND LOUNGE INC.**

AS AND FOR A FIRST CAUSE OF ACTION

87. Plaintiffs repeat, reiterate and re-allege each and every allegation previously set forth as if more fully set forth herein at length.

88. The within claim against the Defendants is for Civil Rights Violations, Discrimination Based on Nation Origin -Race because DEMAND LODGE, an individual of Caribbean descent, is the owner of LITTLE OCHIE RESTAURANT AND LOUNGE INC., a Caribbean owned business, in a predominantly Caribbean Community, in violation of laws which include and are not

limited to:

28 U.S.C. §§ 1331, 1343 (3) and 1367 (a)

42 U.S.C. 1983 (Section 1983)

Fourth and Fourteenth Amendments to the
United States Constitution;

Laws of the State and City of New York

89. The within claim seeks damages for DEMAND LODGE as
a result of:

Defamation of character;

Slander;

Intentional infliction of emotional distress;

Negligent infliction of emotional distress;

Punitive Damages

Attorneys Fees

90. The within claims seeks damages on behalf of LITTLE
OCHIE RESTAURANT AND LOUNGE INC. as a result of:

Trespass to Chattel;

Property Damage;

Loss of Business Income;

Prima Facia Tort

Punitive Damages

Attorneys Fees.

91. That as a result of the events set forth above, no charges were ever filed against DEMAND LODGE or against LITTLE OCHIE RESTAURANT & LOUNGE INC.

92. That the actions of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, including but not limited to, SGT. ALAN CHAU, P.O, JOSEPH L. VITI and unidentified officers of the 67th Pct. were intentional.

93. That the actions of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, including but not limited to SGT. ALAN CHAU, P.O, JOSEPH L. VITI and unidentified officers of the 67th Pct. resulted in and continues to result in loss of business income to LITTLE OCHIE RESTAURANT & LOUNGE INC.

94. That the actions of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants, and/or employees, including but not limited to SGT. ALAN CHAU, P.O, JOSEPH L. VITI and unidentified officers of the 67th Pct. were in continuance of a deliberate and concerted course of conduct sponsored and endorsed by THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including it's agents, servants and/or employees, and unidentified Police Officers of the 67th pct. to prevent, curtail, limit, Caribbean restaurant/lounges from

operating as THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, it's agents, servants and/or employees of the 67th pct. has done to other similarly situated Caribbean business owners.

95. THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants, and/or employees, including but not limited to SGT. ALAN CHAU and unidentified officers of the 67th Pct. were negligent, careless, recklessness in the performance of their official duties, and exhibited a willful, wanton disregard of the Civil Rights of DEMAND LODGE as guaranteed by the Constitution of the United States, the Constitution of the State of New York as well as Federal, State and Local laws.

96. THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, were negligent, careless and reckless in failing to hire, instruct, train, re-train, supervise, monitor, counsel its employees and failed to properly hire, train, re-train, supervise, monitor, counsel its agents, servants and/or employees.

97. That the actions of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, including but not limited to SGT. ALAN CHAU and unidentified officers of the 67th Pct. were egregious,

intentional acts, in violation of City, State and Federal Civil Rights, and beyond the scope of human decency and shocking.

98. That the actions of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, including but not limited to SGT. ALAN CHAU) and unidentified officers of the 67th Pct. constituted conversion of property and/or trespass to chattel in that the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT intended to take the property of LITTLE OCHIE RESTAURANT & LOUNGE INC., interfered with its rights in the property and possession or the right to possession by LITTLE OCHIE RESTAURANT & LOUNGE INC.

99. That the actions of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, including but not limited to SGT. ALAN CHAU, P.O, JOSEPH L. VITI, and unidentified officers of the 67th Pct. constituted defamation and slander in that the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT did make false and defamatory statements of fact regarding DEMAND LODGE and that LITTLE OCHIE RESTAURANT & LOUNGE INC. did not have a valid on premise liquor license which was published to third parties and has resulted in injury to DEMAND LODGE, and LITTLE OCHIE RESTAURANT & LOUNGE INC.

100. That the actions of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, including but not limited to SGT. ALAN CHAU, P.O, JOSEPH L. VITI, and unidentified officers of the 67th Pct. resulted in monetary damages to LITTLE OCHIE RESTAURANT & LOUNGE INC. as the patrons did not pay their food bills on September 29, 2017/September 30, 2017 when they were directed to leave the restaurant. That the actions of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, including but not limited to SGT. ALAN CHAU and unidentified officers of the 67th Pct. constitutes tortuous interference with LITTLE OCHIE RESTAURANT & LOUNGE INC.'s contractual relationships third parties.

101. As a result of the foregoing the Plaintiffs DEMAND LODGE and LITTLE OCHIE RESTAURANT & LOUNGE INC. to suffer damages in a sum which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION

102. Plaintiffs repeat, reiterate and re-allege each and every allegation previously set forth herein.

103. That on September 30, 2018, at approximately 12:30 A.M. inside LITTLE OCHIE RESTAURANT & LOUNGE INC, multiple police officers, agents/servants and/or employees of

THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to SGT. ALAN CHAU and P.O, VITI of the 67th Pct. and approximately ten (10) unidentified officers entered LITTLE OCHIE RESTAURANT & LOUNGE INC, while dinner was being served.

104. Upon information and belief, SGT. ALAN CHAU and other Police officers requested that representatives of LITTLE OCHIE RESTAURANT & LOUNGE INC. display a valid on premises NYS liquor license for LITTLE OCHIE RESTAURANT & LOUNGE INC.

105. In spite of the liquor license being in plain view and publically displayed, the officers from the 67th pct. refused to view it stating that they had no record of LITTLE OCHIE RESTAURANT & LOUNGE INC having a liquor license.

106. That the Defendants, including but not limited to SGT. ALAN CHAU, stated to the patrons of LITTLE OCHIE RESTAURANT & LOUNGE INC. that the restaurant was closed and directed all patrons to immediately leave.

107. That as a result of the foregoing the Plaintiff loss business income as the patrons who were eating and forced to leave had not paid for their dinners.

108. As a result of the foregoing the Plaintiffs DEMAND LODGE AND LITTLE OCHIE RESTAURANT AND LOUNGE INC. have

been damaged in a sum which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION

109. Plaintiffs repeat, reiterate and re-allege each and every allegation previously set forth herein.

110. As a result of actions of the Officers from the 67th pct. including but not limited to SGT. ALAN CHAU and P.O, VITI of the 67th Pct. publically announcing that LITTLE OCHIE RESTAURANT AND LOUNGE INC. did not have a valid liquor license, high profile bookings were cancelled.

111. As a result of the foregoing the Plaintiffs DEMAND LODGE AND LITTLE OCHIE RESTAURANT AND LOUNGE INC. have sustained loss of investment money as well as loss of business income and have been damaged in a sum which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION

112. Plaintiffs repeat, reiterate and re-allege each and every allegation previously set forth herein.

113. That the actions of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants, and/or employees, including but not limited to SGT. ALAN CHAU and P.O. VITI were in continuance of a deliberate and concerted course of conduct sponsored and endorsed by THE CITY OF NEW YORK and THE

NEW YORK CITY POLICE DEPARTMENT, it's agents, servants and/or employees, to prevent, curtail, limit, harass the Plaintiffs and other similarly situated businesses owners from engaging in Caribbean styled music and entertainment events in celebration of their Caribbean heritage.

114. That upon information and belief, the Defendants did not treat white owned business in the same manner as they treated the Caribbean owned business.

115. That the Defendants did discriminate against the Plaintiffs DEMAND LODGE AND LITTLE OCHIE RESTAURANT AND LOUNGE INC. based on their national origin.

116. As a result of the foregoing the Plaintiff DEMAND LODGE AND LITTLE OCHIE RESTAURANT AND LOUNGE INC. have been damaged in a sum which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION

117. Plaintiff repeats, reiterates and re-alleges each and every allegation previously set forth herein.

118. THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants, and/or employees, including but not limited to SGT. ALAN CHAU and P.O. VITI were negligent, careless, recklessness in the performance of their official duties, and exhibited a willful, wanton disregard for the civil

rights of DEMAND LODGE as guaranteed by the Constitution of the United States, the Constitution of the State of New York as well as Federal, State and Local laws.

119. As a result of the foregoing the Plaintiffs DEMAND LODGE AND LITTLE OCHIE RESTAURANT AND LOUNGE INC. have been damaged in a sum which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION

120. Plaintiffs repeat, reiterate and re-allege each and every allegation previously set forth herein.

121. THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, were negligent, careless and reckless in failing to hire, instruct, train, re-train, supervise, monitor, counsel its employees and failed to properly hire, train, re-train, supervise, monitor, counsel its agents, servants and/or employees.

122. As a result of the foregoing the Plaintiffs DEMAND LODGE AND LITTLE OCHIE RESTAURANT AND LOUNGE INC. have been damaged in a sum which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A SEVENTH CAUSE OF ACTION

123. Plaintiffs repeat, reiterate and re-allege each and every allegation previously set forth herein.

124. That the actions of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, including but not limited to SGT. ALAN CHAU, and P.O. NELSON were egregious, intentional act, in violation of City, State and Federal Civil Rights, and beyond the scope of human decency and shocking.

125. That as a result of the foregoing the Plaintiffs DEMAND LODGE AND LITTLE OCHIE RESTAURANT AND LOUNGE INC. are entitled to an award of punitive damages.

AS AND FOR A EIGHTH CAUSE OF ACTION

126. Plaintiffs repeat, reiterate and re-allege each and every allegation previously set forth herein.

127. That the actions of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees including but not limited to SGT. ALAN CHAU and P.O. VITI and unidentified officers of the 67th pct., constituted trespass to chattel and interfere with DEMAND LODGE AND LITTLE OCHIE RESTAURANT AND LOUNGE INC. rights in the property and possession or the right to possession by DEMAND LODGE AND LITTLE OCHIE RESTAURANT AND LOUNGE INC.

128. That as a result of the foregoing the Plaintiffs DEMAND LODGE AND LITTLE OCHIE RESTAURANT AND LOUNGE INC. have been damaged in a sum which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A NINTH CAUSE OF ACTION

129. Plaintiffs repeat, reiterate and re-alleges each and every allegation previously set forth herein.

130. That the actions of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees including but not limited to SGT. ALAN CHAU, and P.O. VITI and unidentified officers of the 67th pct., constituted defamation and slander in that THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did make false and defamatory statements of fact regarding DEMAND LODGE and that LITTLE OCHIE RESTAURANT AND LOUNGE INC. did not have a valid on premises liquor license, which statement was published to third parties resulting in injury to Kendall Stewart and Café Omar.

131. That the actions of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees including but not limited to SGT. ALAN CHAU and P.O. VITI and unidentified officers of the 67th pct., resulted in loss of business income to LITTLE OCHIE RESTAURANT AND LOUNGE INC.

132. That as a result of the foregoing the Plaintiffs DEMAND LODGE AND LITTLE OCHIE RESTAURANT AND LOUNGE INC. have been damaged in a sum which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A TENTH CAUSE OF ACTION

133. Plaintiff repeats, reiterates and re-alleges each and every allegation previously set forth herein.

134. That due to the actions of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT their agents, servants, and/or employees, including but not limited to SGT. ALAN CHAU., P.O. VITI and "JOHN DOE/JANE DOE" numbered 1-10 of the 67th Pct. DEMAND LODGE suffered serious physical injuries, stress upon his physical system, psychological emotional injury and anxiety, injuries for which THE CITY OF NEW YORK, and THE NEW YORK CITY POLICE DEPARTMENT the full extent of which is not known at this time, for which he may require to and will be required to seek health care in the future.

135. That as a result of the foregoing the Plaintiff DEMAND LODGE has been damaged in a sum which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A ELEVENTH CAUSE OF ACTION

136. Plaintiff repeat, reiterate and re-allege each and every allegation previously set forth as if more fully set forth herein at length.

137. That the Defendants have negligently caused emotional distress to the Plaintiff DEMAND LODGE.

138. That as a result of the foregoing the Plaintiffs DEMAND LODGE AND LITTLE OCHIE RESTAURANT AND LOUNGE INC. have been damaged in a sum which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A TWELFTH CAUSE OF ACTION

139. Plaintiffs repeat, reiterate and re-allege each and every allegation previously set forth as if more fully set forth herein at length.

140. That the Defendants have intentionally caused emotional distress to the Plaintiff DEMAND LODGE.

141. That as a result of the foregoing the Plaintiff DEMAND LODGE has been damaged in a sum which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A THIRTEENTH CAUSE OF ACTION

142. Plaintiffs repeat, reiterate and re-allege each and every allegation previously set forth as if more fully set forth herein at length.

143. That the Plaintiff DEMAND LODGE is entitled to an award of statutory attorneys fees.

WHEREFORE, Plaintiff PATRICIA WATSON demand judgment against the Defendants as follows:

On the First Cause of Action in a sum to be determined upon the trial of this action.

On the Second Cause of Action in a sum to be determined upon the trial of this action.

On the Third Cause of Action in a sum to be determined at trial.

On the Fourth Cause of Action in a sum to be determined upon the trial of this action.

On the Fifth Cause of Action in a sum to be determined upon the trial of this action.

On the Sixth Cause of Action in a sum to be determined upon the trial of this action.

On the Seventh Cause of Action in a sum to be determined upon the trial of this action.

On the Eighth Cause of Action in a sum to be determined upon the trial of this action.

On the Ninth Cause of Action in a sum to be determined upon the trial of this action.

On the Tenth Cause of Action in a sum to be determined upon the trial of this action.

On the Eleventh Cause of Action in a sum to be determined upon the trial of this action.

On the Twelfth Cause of Action in a sum to be determined upon the trial of this action.

WHEREFORE, Plaintiffs DEMAND LODGE AND LITTLE OCHIE RESTAURANT AND LOUNGE INC. demand judgment against the Defendants as follows:

On the First Cause of Action in a sum to be determined upon the trial of this action.

On the Second Cause of Action in a sum to be determined upon the trial of this action.

On the Third Cause of Action in a sum to be determined upon the trial of this action.

On the Fourth Cause of Action in a sum to be determined upon the trial of this action.

On the Fifth Cause of Action in a sum to be determined upon the trial of this action.

On the Sixth Cause of Action in a sum to be determined upon the trial of this action.

On the Seventh Cause of Action in a sum to be determined upon the trial of this action.

On the Eighth Cause of Action in a sum to be determined upon the trial of this action.

On the Ninth Cause of Action in a sum to be determined upon the trial of this action.

On the Tenth Cause of Action in a sum to be determined upon the trial of this action.

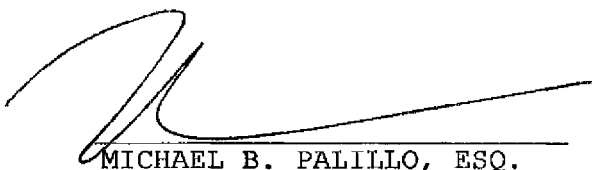
On the Eleventh Cause of Action in a sum to be determined upon the trial of this action.

On the Twelfth Cause of Action in a sum to be determined upon the trial of this action.

On the Thirteenth Cause of Action in a sum to be determined upon the trial of this action.

and for such other and further relief as to this Court deems just, proper and equitable.

Dated: August 24, 2018
New York, New York



MICHAEL B. PALILLO, ESQ.

EXHIBIT A

CRIMINAL COURT OF THE CITY OF NEW YORK
PART APAR COUNTY OF KINGS

THE PEOPLE OF THE STATE OF NEW YORK

STATE OF NEW YORK
COUNTY OF KINGS

V

PATRICIA WATSON

POLICE OFFICER JOSEPH L VITI SHIELD NO.9113, OF 067 COMMAND SAYS THAT ON OR ABOUT SEPTEMBER 30,2017 AT APPROXIMATELY 01:04 AM AT 3605 CHURCH AVENUE COUNTY OF KINGS, STATE OF NEW YORK,

THE DEFENDANT COMMITTED THE OFFENSE(S) OF:

PL 240.45(2) CRIMINAL NUISANCE IN THE SECOND DEGREE
AC 24-220(A) SOUND REPRODUCTION DEVICES

IN THAT THE DEFENDANT DID:

EXCEPT AS PROVIDED IN SECTION 10-108 OF THE CODE, NO PERSON SHALL OPERATE OR USE OR CAUSE TO BE OPERATED OR USED ANY SOUND REPRODUCTION DEVICE IN SUCH A MANNER AS TO CREATE ANY UNNECESSARY NOISE; KNOWINGLY CONDUCT OR MAINTAIN ANY PREMISES, PLACE OR RESORT WHERE PERSONS GATHER FOR PURPOSES OF ENGAGING IN UNLAWFUL CONDUCT.

THE SOURCE OF DEPONENT'S INFORMATION AND THE GROUNDS FOR DEPONENT'S BELIEF ARE AS FOLLOWS:

THE DEPONENT STATES THAT, AT THE ABOVE TIME AND PLACE, A BAR AND NIGHTCLUB ESTABLISHMENT, THE DEPONENT COULD HEAR LOUD MUSIC FROM THE SIDEWALK, COMING FROM INSIDE THE AFOREMENTIONED ESTABLISHMENT.

THE DEPONENT FURTHER STATES THAT DEPONENT ENTERED THE ABOVE MENTIONED LOCATION FOR A BUSINESS INSPECTION AND THAT, DEPONENT DID SMELL A STRONG ODOR OF MARIHUANA AND THAT, DEPONENT WALKED TOWARDS THE BACK OF THE ESTABLISHMENT INTO A PATIO AREA AND OBSERVED THE ODOR BECOME STRONGER, AND OBSERVED A QUANTITY OF GREEN LEAVES THAT APPEARED TO BE MARIHUANA AND CIGAR WRAPPERS ON TOP OF A TABLE.

DEPONENT FURTHER STATES THAT THE DEPONENT HAS HAD PROFESSIONAL TRAINING AS A POLICE OFFICER IN THE IDENTIFICATION OF MARIHUANA, HAS PREVIOUSLY MADE ARRESTS FOR THE CRIMINAL POSSESSION OF MARIHUANA, HAS PREVIOUSLY SEIZED MARIHUANA, WHICH WAS DETERMINED TO BE SUCH BY A CHEMICAL ANALYSIS BY THE POLICE DEPARTMENT LABORATORY, AND THE SUBSTANCE IN THIS CASE POSSESSES THE SAME PHYSICAL CHARACTERISTICS AS SUCH PREVIOUSLY CHEMICALLY IDENTIFIED SUBSTANCE AND BY PROFESSIONAL TRAINING AND EXPERIENCE AS A POLICE OFFICER, IS FAMILIAR WITH THE COMMON METHODS OF PACKAGING MARIHUANA.

BASED ON THE FOREGOING, IN DEPONENT'S OPINION, THE SUBSTANCE IN THIS CASE IS MARIHUANA.

FALSE STATEMENTS MADE IN THIS DOCUMENT ARE
PUNISHABLE AS A CLASS A MISDEMEANOR PURSUANT
TO SECTION 210.45 OF THE PENAL LAW.

9/30/17 *PO [Signature]*
DATE SIGNATURE



Criminal Court of the City of New York

Kings County

Misdemeanor Complaint

M

The People of the State of New York

vs.

Defendant:

Charges:

Docket Number:

1. PATRICIA WATSON
K17664322 09/30/2017 01:33
280A EAST 58 STREET
BROOKLYN NY 11203

(F 54) PL 240.45(2)
AC 24-220(A)



K17664322

☐ LAS ☐ BDS ☐ 18B

☒ SVT

Name

Zeitlin

Interpreter: Language

Bureau: Trial Bureau 2 - Blue

Notices Served at Arraignment:

- ☐ CPL 710.30(1)(A) - Statement
☐ CPL 710.30(1)(B) - Identification
☐ CPL 250.20 - Arraignment
☐ CPL 240.30 - Discovery
☐ PL 450.10(4b) hrs / 15 days - Property
☐ CPL 170.20 - Grand Jury
☐ Cross Grand Jury
☐ CPL 370.15 - MCDV
☐ CPL 170.10(8)(A) - Family Offense
☐ OTHER: _____

Documents:**Needed For Conversion****Served at Arraignment:**

- ☐ Supporting Deposition
☐ DMV Abstract
☐ Lab Report/ Field Test
☐ DWI Paperwork
☐ Domestic Incident Report
☐ Family Registry
☐ Underlying T.O.P.

- ☐
☐
☐
☐
☐
☐
☐

Adjournment:

☐ Assign 18B ☐ DTRC

Part: _____ Date: _____

Bail Condition:

(Ins. Co. Bond) (Cash) (Other) _____

Reason for Adjournment:

- ☐ People Ready
☐ Deemed an Information
 Defense Motions Due:

- ☐ ART 730 Exam Ordered
☐ Protective Custody
☐ Medical Attention
☐ Psychiatric Evaluation
☐ Suicide Watch
☐ T.O.P. / F.O.P.

Disposition:

- ☒ ACD - CPL 170.55
☐ ACD - CPL 170.58
☐ Waive Prosecution by Information
 and Pleads Guilty to
 PL 240.20/
☐ Investigation & Sentence Ordered
☐ DNA-Eligible Misdemeanor
☐ DNA Sample Taken

Sentence (or Promise):

_____ days jail

Conditional Discharge:

_____ Days Community Service

_____ Days Jail Alternative

Other: _____

Mandatory Surcharge (and CVAF):

- ☐ Judgment Entered - All Fees
☐ \$200 Misd. ☐ \$120 Viol. ☐ \$88 VTL
☐ \$385 VTL1192 Misd. ☐ \$255 VTL1192(1) Infrac.
☐ \$50 - DNA Fee

Arresting Officer JOSEPH VITI

Court Reporter

Date

Part

Comments:

CNC 3215 (rev. 5/12)

Judge

WJ

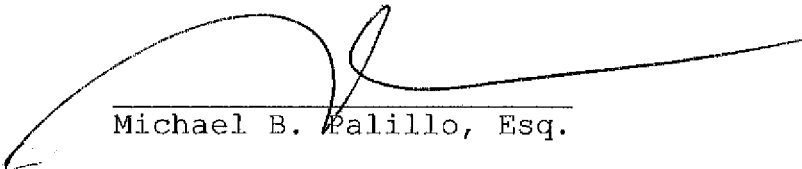
ALL 30 SEP 30 2017
 JUDGE PEACH
 SEP 11 2017

NY
 62

Michael B. Palillo, an attorney duly admitted to practice law in the Courts of the State of New York affirms the following under penalties of perjury:

1. I am the attorney for the Plaintiff(s) in the above captioned matter. I have read the foregoing Supplemental Summons and Amended Verified Complaint and know the contents thereof; the same is true to my knowledge, except as to matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true based on a review of the files maintained in this office and conversations had with the Plaintiff(s). The reason why this verification is made by the undersigned attorney rather than the Plaintiff(s) is that the Plaintiff(s) do/does not reside in the County where I maintain my office for the practice of law.

Dated: New York, New York
August 24, 2018



Michael B. Palillo, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index #: 515244/2018

PATRICIA WATSON, DEMAND LODGE and
LITTLE OCHIE RESTAURANT AND LOUNGE INC.

Plaintiffs,

-against-

THE CITY OF NEW YORK, SGT. ALAN CHAU
SHIELD #24265,
POLICE OFFICER JOSEPH L. VITI SHIELD #9113
AND OTHER UNIDENTIFIED OFFICERS "JOHN DOES"
AND
"JANE DOES", APPROXIMATELY "1-10" NAMES
FICTITIOUS, TRUE NAMES UNKNOWN INTENDED
TO DESIGNATE POLICE OFFICERS OF THE 67TH
PRECINCT AT THE TIMES AND PLACES ALLEGED

Defendants.

**SUPPLEMENTAL SUMMONS AND
AMENDED VERIFIED COMPLAINT**

Michael B. Palillo P.C.

Attorneys for Plaintiff(s)

Office and Post Office Address:

277 Broadway, Suite 501

New York, NY 10007

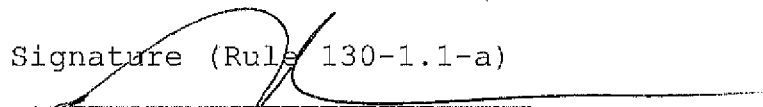
(212) 608-8959

(212) 608-0304 Fax (Not for Service)

MPalillo@PalilloLaw.com

(Not for Service)

Signature (Rule 130-1.1-a)


MICHAEL B. PALILLO, ESQ.